

**TENTATIVE RULINGS**  
**LAW AND MOTION CALENDAR**

**Judge Nathan Vu**

**Department N15**

**Hearing Date and Time: August 24, 2026 @ 9:00 AM**

**TENTATIVE RULINGS:** The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

**ORAL ARGUMENT:** The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail [n15@occourts.org](mailto:n15@occourts.org) or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

**APPEARANCES:** Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

**COURT REPORTERS:** Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at [https://www.occourts.org/media/pdf/Private\\_Retained\\_Court\\_Reporter\\_Policy.pdf](https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf).

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| <p><b>2</b></p> | <p><b>Tran vs. Hyundai Motor America</b></p> <p><b>30-2025-01479938</b></p> | <p><u>Motion to Compel Arbitration</u></p> <p>Defendant Hyundai Motor America’s Motion to Compel Binding Arbitration and Stat Action is GRANTED.</p> <p>The parties are ORDERED to arbitrate all claims between them that are asserted in this action</p> <p>This action shall be STAYED pending completion of the arbitration proceedings.</p> <p>The court SETS an ADR Review Hearing for February 25, 2027, at 10:00 a.m. in Department N15.</p> <p>Plaintiff Frank Tran’s Request for Judicial Notice in Support of Plaintiff’s Opposition to Defendant’s Motion to Compel Binding Arbitration is GRANTED as to Exhibit 4 and 6-9 and DENIED as to Exhibits 1-3 and 5.</p> <p>There is nothing in Exhibits 1-3 and 5 to show that they are official “records” of the courts of this state. (See Evid. Code, § 452, subd. (d.))</p> <p>Plaintiff Frank Tran’s evidentiary objections to the Declaration of Jordan A. Willette is OVERRULED as to evidentiary objections numbers 1 and 2.</p> <p><u>Pending Motion</u></p> <p>Defendant Hyundai Motor America moves to compel arbitration of all of Plaintiff Frank Tran’s claims and to stay this action pending arbitration.</p> <p><u>Standard for Compelling Arbitration</u></p> <p>The law of this state with respect to arbitration agreements is contained in the California Arbitration Act (CAA), Civil Procedure Code section 1280, <i>et seq.</i></p> <p>Under the CAA, when a party to an arbitration agreement refuses to submit to arbitration, the other party may petition the court to compel arbitration and stay any pending lawsuit. (See Code Civ. Proc., § 1281.2; <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218.)</p> <p>However, the right to arbitration is based on contract. (See <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Thus, the parties also may agree in the contract</p> |
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|  |  | <p>that the arbitration will be controlled by the Federal Arbitration Act (FAA.)</p> <p>In addition, “[t]he FAA applies to any ‘contract evidencing a transaction involving commerce’ that contains an arbitration provision.” (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 238, quoting 9 U.S.C. § 2.)</p> <p>As with the CAA, when a party to an arbitration agreement governed by the FAA refuses to submit to arbitration, the other party may petition the court to compel arbitration and stay any pending lawsuit. (See 9 U.S.C. § 4.)</p> <p>The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (<i>AT &amp; T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333.)</p> <p>Thus, the FAA permits arbitration agreements to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (<i>Ibid.</i>) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.)</p> <p>On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.)</p> <p>If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; see <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].)</p> <p>The party seeking to compel arbitration bears an initial burden to make a <i>prima facie</i> showing the</p> |
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|  |  | <p>claims asserted in the complaint are covered by a valid agreement to arbitrate. (<i>Molecular Analytical Systems v. CIPHERGEN Biosystems, Inc.</i> (2010) 186 Cal.App.4th 696, 710-711.) Then, “the party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.)</p> <p>If the court grants the motion to compel arbitration, it must stay the court action until completion of the arbitration. (See Code Civ. Proc., § 1281.4; <i>Thomas v. Westlake</i> (2012) 204 Cal.App.4th 605, 620 [if court orders arbitration, “it must also stay proceedings on the claims until completion of arbitration”].)</p> <p><u>Applicability of the Federal Arbitration Act</u></p> <p>Defendant seeks to compel arbitration pursuant to the arbitration agreement found in the “Owner’s Handbook &amp; Warranty Information” manual (Warranty). (See Decl. of Jordan A. Willette in Supp. of Def.’s Mot. to Compel Binding Arbitration and Stay Action (Willette Decl.), ¶ 3, Exh. B at pp. 12-14.)</p> <p>The Warranty states that, “This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16.” (<i>Id.</i>, Exh. B at p. 14.)</p> <p>Therefore, any agreement to arbitrate in this case will be controlled by the Federal Arbitration Act (FAA).</p> <p><u>Existence of Arbitration Agreement</u></p> <p>With regard to the existence of an agreement to arbitrate, the party seeking to compel arbitration bears “the ultimate burden of proof, but the court [is] obliged to resolve the dispute using a three-step burden-shifting process.” (<i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755.)</p> <p>Court of Appeal has explained that this process requires that:</p> <p style="padding-left: 40px;">The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. A movant can bear this initial burden “by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.” At this step, a movant need not “follow the normal procedures of document authentication” and need only “allege the</p> |
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|  |  | <p>existence of an agreement and support the allegation as provided in rule [3.1330].”</p> <p>If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence — in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not <i>prove</i> that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.</p> <p><i>(Ibid., citations omitted, quoting Espejo v. Southern California Permanent Medical Group (2016) 246 Cal.App.4th 1047, 1060 &amp; Condee v. Longwood Management Corp., supra, 88 Cal.App.4th at pp 218-219.)</i></p> <p>In this case, Defendant introduced into evidence the Warranty, which states, in relevant part:</p> <p><b>BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY</b></p> <p><b>PLEASE READ THIS SECTION IN ITS ENTIRETY AS IT AFFECTS YOUR RIGHTS THIS SECTION DOES NOT PRECLUDE YOU FROM FIRST PURSUING ALTERNATIVE DISPUTE RESOLUTION THROUGH BBB AUTO LINE AS DESCRIBED IN THE “ALTERNATIVE DISPUTE RESOLUTION” PROVISION IN SECTION 3 OF THIS HANDBOOK</b></p> <p>If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under</p> |
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|  |  | <p>the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through JAMS Mediation, Arbitration and ADR Services (JAMS) under its Streamlined Arbitration Rules &amp; Procedures, or the American Arbitration Association (AAA) under its Consumer Arbitration Rules.</p> <p>We will pay all fees for any arbitration except for the initial filing fee of \$250 SECTION 4 for JAMS or \$200 for AAA. The arbitration will be held in the city or county of your residence. To learn more about arbitration, including the applicable rules and how to commence arbitration, please contact: JAMS at <a href="http://www.jamsadr.org">www.jamsadr.org</a>; 800-352-5267; or AAA at <a href="http://www.adr.org">www.adr.org</a>; 800-778-7879.</p> <p>This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us (including our affiliated companies) relating to or arising out of your vehicle purchase, use or performance of your vehicle, or the vehicle warranty subject to arbitration to the maximum extent permitted by law. The arbitrator (and not a court) shall decide all issues of interpretation, scope, and application of this agreement.</p> <p>In any arbitration, the arbitrator shall be bound by the terms of this agreement and shall follow the applicable law. The arbitrator shall not have the power to commit manifest errors of law, and any award rendered by the arbitrator that employs a manifest error of law may be vacated or corrected by a court of competent jurisdiction for such error. The arbitrator may only resolve disputes between you and us and may not consolidate claims</p> |
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|  |  | <p>without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others , or issue any award or remedy in arbitration against or on behalf of anyone who is not a named party to the arbitration, as permitted by law. In other words, you and we may bring claims against the other only in your or our individual capacity, and not as a plaintiff or class member in any class or representative action to the maximum extent permitted by law. You and we acknowledge and agree that, to the fullest extent permitted by law, we are each waiving the right to participate as a plaintiff or class member in any purported class action lawsuit, class-wide arbitration, private attorney general action, or any other representative proceeding. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy, then that claim or remedy (and only that claim or remedy) must be brought in court and must be stayed pending arbitration of the arbitrable claims and remedies. If a court or arbitrator decides that any part of this agreement cannot be enforced as to a particular request for public injunctive relief, then that request for public injunctive relief (and only that request for public injunctive relief) must be brought in court and must be stayed pending arbitration of the arbitrable remedies. If arbitration is elected by either party, the parties collectively agree that they waive their right to a jury trial.</p> <p>Notwithstanding the above, either you or we may file a lawsuit in small claims court for any claims that otherwise require binding arbitration, if the small claims court has jurisdiction. In addition, either you or we may invoke any JAMS Streamlined Arbitration Rules &amp; Procedures or AAA Consumer Arbitration Rules that allow you or we to have a small claims court decide any claims that otherwise require binding arbitration. This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16. Judgment upon any award in arbitration may be entered in any court having jurisdiction.</p> <p><b>IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR</b></p> |
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**WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT OPT-OUT@HMAUSA.COM WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION.**

(Willette Decl., Exh. B at pp. 12-14, bold and capital letters original.)

In response, Plaintiff objects to admission of the Warranty on the basis that counsel for Defendant cannot authenticate it.

However, as explained above, Defendant need not “follow the normal procedures of document authentication” and is only required to allege the existence of an arbitration agreement and attach a copy of it to Defendant’s papers. (*Iyere v. Wise Auto Group*, supra, 87 Cal.App.5th 747, 755; see also Cal. Rules of Court, rule 3.1330 [“The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.”].)

Thus, Defendant has met the requirement of alleging the existence of an arbitration agreement, as contained in the Warranty, and the burden then falls upon Plaintiff to produce evidence to dispute the authenticity of the Warranty or that the Warranty does not contain an arbitration agreement.

Plaintiff has not met this shifted burden, and in fact, has not produced any evidence that calls into question the authenticity of the Warranty or the existence of the arbitration provision contained in the Warranty (Arbitration Agreement).

No Consent By Plaintiff

Instead, Plaintiff contends that he never informed or given notice of the Arbitration Agreement contained in the Warranty. (Decl. of Frank Tran in Supp. of Pltf.’s Opp’n to Def.’s Mot. to Compel Arbitration, ¶¶ 4-5.)

Plaintiff also asserts that he never signed the

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|  |  | <p>Arbitration Agreement and in fact, neither the Arbitration Agreement nor the Warranty contain a signature line. (See <i>id.</i>, ¶ 6.)</p> <p>However, as the Court of Appeal has explained:</p> <p>“[A] party may be estopped from asserting that the lack of his signature on a written contract precludes enforcement of the contract’s arbitration clause when he has consistently maintained that other provisions of the same contract should be enforced to benefit him. . . . [¶] A nonsignatory is estopped from refusing to comply with an arbitration clause ‘when it receives a ‘direct benefit’ from a contract containing an arbitration clause.”</p> <p>(<i>Boucher v. Alliance Title Co., Inc.</i> (2005) 127 Cal.App.4th 262, 269, quoting <i>International Paper Co. v. Schwabedissen Maschinen &amp; Anlagen GMBH</i> (4th Cir. 2000) 206 F.3d 411, 418.)</p> <p>Thus, Plaintiff’ argument is barred by judicial estoppel, which prohibits “a party from making a factual assertion in a legal proceeding which directly contradicts an earlier assertion made in the same proceeding or a prior one.” (<i>International Engine Parts, Inc. v. Feddersen &amp; Co.</i> (1998) 64 Cal.App.4th 345, 350, quoting <i>Russel v. Rolfs</i> (9th Cir. 1990) 893 F.2d 1033, 1037.)</p> <p>Here, the Complaint pleads causes of action that directly rely on the idea that the Warranty constitutes an agreement that binds Defendant. (See Compl., ¶ 11 [“When the Subject Vehicle was purchased, Plaintiff received express written warranties in which Defendant undertook to preserve or maintain the utility or performance of Subject Vehicle or to provide compensation if there is a failure in utility or performance for a specified period of time. The warranty provided, in relevant part, that in the event a nonconformity developed within Subject Vehicle during the applicable warranty period, Plaintiff could deliver Subject Vehicle for repair to Defendant’s authorized service and repair facilities and Subject Vehicle would be repaired.”].)</p> <p>Those causes of action are premised on the Complaint’s allegation that the Warranty imposes specific obligations upon Defendant that Defendant allegedly breached. (See, e.g., Compl., ¶ 14 [“Defendant and/or its authorized service and repair</p> |
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|  |  | <p>facilities failed to service or repair Subject Vehicle to conform to the applicable express warranties after a reasonable number of opportunities to do so.”)).</p> <p>Plaintiff cannot reasonably argue that Defendant is bound by its obligations under the Warranty, while also contending that Plaintiff need not abide by his obligations under the Warranty. (See <i>Vargas-Lopez v. Hyundai Motor America</i> (C.D. Cal., Feb. 13, 2023, No. 8:22-CV-01526-FWS-JDE) 2023 WL 3035331 at p. *6 [equitable estoppel applies where “Plaintiff is simultaneously relying on the terms of the warranty to assert claims while attempting to avoid the arbitration agreement contained in the warranty”]; <i>Guaschino v. Hyundai Motor America</i> (C.D. Cal., Sept. 27, 2023, No. CV-23-04354-MWF-JPRx) 2023 WL 8126846, at p. *4 [“Plaintiff, by his own admission, is relying on the Warranty Agreement containing the Arbitration Provision as the basis for his claims”].)</p> <p>Plaintiff cites to <i>Norcia v. Samsung Telecommunications America, LLC</i>, LLC (9th Cir. 2017) 845 F.3d 1279, but that case is distinguishable.</p> <p>There, the plaintiff brought suit against the manufacturer of cellular telephones, contending that the defendant had misrepresented the “storage capacity [of the cellular telephones] and rigged the phone to operate at a higher speed when it was being tested.” (<i>Id.</i> at pp. 1282-1283.)</p> <p>Thus, the claims in the lawsuit had nothing to do with the limited warranty and arbitration provision that were placed in the box with the cellular telephone. (See <i>id.</i> at p. 1282.)</p> <p>The plaintiff in that case could and did take the position that he had never agreed to the limited warranty or arbitration provision, and the 9th Circuit agreed. (See <i>id.</i> at p. 1285.)</p> <p>The concept of equitable estoppel did not apply under the facts of that case and, in fact, was not mentioned in the 9th Circuit’s opinion.</p> <p>By contrast, Plaintiff’ lawsuit here is premised on the idea that the Warranty is valid and creates binding obligations upon the parties.</p> <p>Plaintiff also asks the court to consider, by way of judicial notice, the rulings of other Superior Courts on motions to compel.</p> |
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|  |  | <p>However, while “[c]ourts can take judicial notice of the existence, content and authenticity of public records and other specified documents, [they] <i>do not take judicial notice of the truth of the factual matters asserted in those documents.</i>”].) (<i>Dominguez v. Bonta</i> (2022) 87 Cal.App.5th 389, 400, italics original.)</p> <p>Without considering the facts of those cases, the court can draw no helpful insight from the rulings of other courts.</p> <p>In any case, California Rules of Court rule 8.1115 mandates that any unpublished opinion of the Court of Appeal or Superior Court “must not be cited or relied on by a court or a party in any other action.” (Cal. Rules of Court, rule 8.1115(a).)</p> <p>In sum, Plaintiff does not dispute that Defendant issued the Warranty and that the Warranty includes the Arbitration Agreement.</p> <p>Further, Plaintiff does not claim that he never received the Warranty or that his claims in this action are not based on the Warranty.</p> <p>Plaintiff also does not state that he opted out of the Arbitration Agreement, as he was expressly allowed to do within 30 days of purchase.</p> <p>To the contrary, Plaintiff accepted the benefits of the Warranty and now seeks to bring suit on the basis of the Warranty.</p> <p>Accordingly, Defendant has met its burden to establish the existence of the Arbitration Agreement and Plaintiff is estopped from arguing that no agreement exists because he did not sign it.</p> <p><u>Whether the Arbitration Agreement Covers the Dispute</u></p> <p>By its terms, the agreement to arbitrate in the Warranty applies to:</p> <p style="padding-left: 40px;">[A]ny claim or disputes . . . related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or</p> |
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|  |  | <p>misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. . . .</p> <p>(Willette Decl., Exh. B at p. 12.)</p> <p>The agreement to arbitrate contained in the Warranty is broad enough to encompass Plaintiff's claims, which all relate to or arise out of "the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty."</p> <p><u>Scope of the Arbitration Agreement</u></p> <p>By its terms, the agreement to arbitrate in the Warranty applies to:</p> <p>[A]ny claim or disputes . . . related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. . . .</p> <p>(Willette Decl., Exh. 3 at p. 12.)</p> <p>The agreement to arbitrate contained in the Warranty is broad enough to encompass most of Plaintiff's claims, which relate to or arise out of "the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty."</p> |
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|  |  | <p><u>Waiver of Right to Arbitration</u></p> <p>Plaintiff also asserts that “<b>Defendant waived the right to compel arbitration by acting inconsistently with that right</b>, such as failing to demand arbitration until <u>nearly one year after</u> filing an Answer, <b>causing great prejudice to Plaintiff by delaying the process and forcing him to live with an unsafe and defective vehicle</b>. See California Code of Civil Procedure §1281 et seq.” (Pltf.’s Opp’n to Def.’s Pet. to Compel Arbitration A Stay Proceedings, Mem. P.s&amp;A.s (Opp’n) at p. 2:2-6, bold and underline original.)</p> <p>A party by conduct and actions can waive their right to arbitration. (See Code Civ. Proc., § 1281.2, subd. (a); see also <i>United States v. Park Place Assocs., Ltd.</i> (9th Cir. 2009) 563 F.3d 907, 921 [“The right to arbitration, like any other contract right, can be waived.”].)</p> <p>However, “[u]nder both the Federal Arbitration Act and state law, waivers of the right to arbitrate are not lightly inferred.” (<i>Hong v. CJ CGV America Holdings, Inc.</i> (2013) 222 Cal.App.4th 240, 248-249.)</p> <p>“Since arbitration is a strongly favored means of resolving disputes, courts must ‘closely scrutinize any claims of waiver.’” (<i>Sobremonte v. Superior Court</i> (1998) 61 Cal.App.4th 980, 991, quoting <i>Keating v. Superior Court</i> (1982) 31 Cal.3d 584, 604.)</p> <p>A “party who resists arbitration on the ground of waiver bears a heavy burden, and any doubts regarding a waiver allegation should be resolved in favor of arbitration.” (<i>Saint Agnes Medical Center v. Pacificare of California</i> (2003) 31 Cal.4th 1187, 1195, citations omitted, overruled on other grounds, <i>Quach v. California Commerce Club, Inc.</i> (2024) 16 Cal.5th 562, 582, fn.4.)</p> <p>Both the United States Supreme Court and the California Supreme Court have held that “in determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration.” (<i>Quach v. California Commerce Club, Inc.</i>, <i>supra</i>, 16 Cal.5th at p. 583, citing <i>Morgan v. Sundance, Inc.</i> (2022) 596 U.S. 411, 418.)</p> |
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|  |  | <p>Courts must “apply the same procedural rules that they would apply to any other contract.” (<i>Ibid.</i>) In other words, “[t]o establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (<i>Id.</i> at p. 584.)</p> <p>The intentional relinquishment or abandonment of the right to arbitrate “may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it.” (<i>Ibid.</i>)</p> <p>Despite making the argument above in the introduction to his opposition, Plaintiff later contends that “[t]here is no valid and enforceable agreement, so there need not be a waiver discussion.” (Opp’n at p. 10:19-20.)</p> <p>True to his word, Plaintiff does not provide any further explanation or argument regarding Defendant’s alleged waiver of its right to compel arbitration.</p> <p>Nor does Plaintiff submit any evidence that Defendant intended to abandon its right to enforce the Arbitration Agreement, other than the fact that Defendant filed this motion a little less than 11 months after filing the answer.</p> <p>This one fact, by itself, is not sufficient to meet the heavy burden placed upon Plaintiff to show by clear and convincing evidence that Defendant intended to waive its right to arbitration, nor can it overcome the strong presumption in favor of arbitration.</p> <p><u>Retail Sales Installment Contract</u></p> <p>Plaintiff next argues that there is no arbitration agreement in the Retail Sales Installment Contract (RISC), (see Willette Decl., ¶ 2, Exh. A), and therefore, the RISC does not serve as a valid basis to grant this motion.</p> <p>However, Defendant’s motion is based on the Arbitration Agreement contained in the Warranty. Therefore, Plaintiff’s argument is irrelevant.</p> |
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|  |  | <p>Here, Defendant has shown that it is entitled to arbitration of Plaintiff's claims and Plaintiff has put forward no valid basis to resist arbitration.</p> <p>Accordingly, the court will grant the motion to compel arbitration.</p> <p><u>Stay of Pending Court Action</u></p> <p>Civil Procedure Code section 1281.4 provides:</p> <p style="padding-left: 40px;">If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.</p> <p>(Code Civ. Proc., § 1281.4.)</p> <p>The Court of Appeal has interpreted Section 1281.4 to mean that "[a]ny party to a judicial proceeding 'is entitled to a stay of those proceedings whenever (1) the arbitration of a controversy has been ordered, and (2) that controversy is also an issue involved in the pending judicial action.'" (<i>Heritage Provider Network, Inc. v. Superior Court</i> (2008) 158 Cal.App.4th 1146, 1152, quoting <i>Marcus v. Superior Court</i> (1977) 75 Cal.App.3d 204, 209.)</p> <p>This means that, as a general matter, if the court grants the motion to compel arbitration, it must stay the court action until completion of the arbitration. (See <i>Thomas v. Westlake</i> (2012) 204 Cal.App.4th 605, 620 [if court orders arbitration, "it must also stay proceedings on the claims until completion of arbitration"].)</p> <p>In addition to Section 1281.4, Section 3 of the FAA states that:</p> <p style="padding-left: 40px;">If any suit or proceeding be brought in any of the courts of the United States upon any issue referable to arbitration under an agreement in writing for such arbitration, the court in which such suit is pending, upon being satisfied that the issue involved in such suit or proceeding is referable to arbitration under such an agreement, shall on application of one of the</p> |
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|   |                                                                      | <p>parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration.</p> <p>(9 U.S.C., § 3.)</p> <p>Therefore, the court must grant the motion to stay these proceedings.</p> <p>Defendant shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 3 | <p><b>Roushanzamir vs. Sierra</b></p> <p><b>30-2025-01510882</b></p> | <p><u>Motion to Compel Arbitration</u></p> <p>Defendant Progressive Insurance Company's Motion to Compel Arbitration and Stay Civil Proceedings is DENIED without prejudice.</p> <p><u>Pending Motion</u></p> <p>Defendant Progressive Insurance Company moves to stay this action with respect to Plaintiff Ali Roushanzamir's claims against Defendant Progressive "until completion of contractual arbitration of the underlying Uninsured Motorist claim." (Def. Progressive's Mot. to Compel Arbitration and Stay Civil Proceedings [ROA #44] at p. 1:23-27.)</p> <p><u>Prior Proceedings</u></p> <p>On April 27, 2026, the court determined that Defendant Progressive had failed to properly serve Plaintiff with the motion papers, as required by Civil Procedure Code section 1005 and 1010.6. (See ROA #42 at pp. 1-2.)</p> <p>The court ordered that Defendant Progressive serve Plaintiff in a manner permitted by the Civil Procedure Code.</p> <p>Defendant Progressive filed the motion papers with a proof of service showing that Plaintiff had been properly served by regular mail. (See ROA #44 at p. 105.)</p> <p>Therefore, the court will address the motion on the merits.</p> <p><u>Compelling Arbitration</u></p> |

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|  |  | <p>Defendant Progressive titles this motion as "Defendant Progressive Insurance Company's Motion to Compel Arbitration and Stay Civil Proceedings." (<i>Id.</i> at p. 1:12-16.)</p> <p>In addition, in its memorandum of points and authorities, Defendant Progressive states that it "seeks to (1) compel this matter to binding contractual arbitration; and (2) stay the instant civil action per Code of Civil Procedure §1281.4." (<i>Id.</i> at p. 3:11-12.)</p> <p>However, in its notice of motion, Defendant Progressive does not request that the court order arbitration. (See <i>id.</i> at pp. 1-2.)</p> <p>Further, in its memorandum of points and authorities, Defendant Progressive asserts that Plaintiff is "<i>already [] engaged in active arbitration</i> with Progressive over his UM personal injury claims." (<i>Id.</i> at p. 4:25-27, italics original.)</p> <p>Thus, it is not clear whether Defendant Progressive is seeking an order compelling arbitration.</p> <p>To the extent that it is, the court denies the motion as Defendant Progressive has failed to meet its burden of showing that it is entitled to compel arbitration. (See <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [party seeking to compel arbitration bears burden of establishing basis of right to arbitration].)</p> <p><u>Staying Pending Court Action</u></p> <p>Civil Procedure Code section 1281.4 provides:</p> <p style="padding-left: 40px;">If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.</p> <p style="padding-left: 40px;">If an application has been made to a court of competent jurisdiction, whether in this State or not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State</p> |
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|  |  | <p>and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.</p> <p>(Code Civ. Proc., § 1281.4.)</p> <p>The Court of Appeal has interpreted Section 1281.4 to mean that "[a]ny party to a judicial proceeding 'is entitled to a stay of those proceedings whenever (1) the arbitration of a controversy has been ordered, and (2) that controversy is also an issue involved in the pending judicial action.'" (<i>Heritage Provider Network, Inc. v. Superior Court</i> (2008) 158 Cal.App.4th 1146, 1152, quoting <i>Marcus v. Superior Court</i> (1977) 75 Cal.App.3d 204, 209.)</p> <p>This means that, as a general matter, if the court grants the motion to compel arbitration, it must stay the court action until completion of the arbitration. (See <i>Thomas v. Westlake</i> (2012) 204 Cal.App.4th 605, 620 [if court orders arbitration, "it must also stay proceedings on the claims until completion of arbitration"].)</p> <p>"The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved." (<i>Federal Ins. Co. v. Superior Court</i> (1998) 60 Cal.App.4th 1370, 1374.) The concern is that, "[i]n the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective." (<i>Id.</i> at p. 1375.)</p> <p>Here, while Defendant Progressive contends that Plaintiff has already engaged in active arbitration, Defendant Progressive provides no evidence of this.</p> <p>The declaration of Defendant Progressive's counsel, the only evidence provided by Defendant Progressive in support of its motion, only attaches the Complaint for Damages (Complaint) filed by Plaintiff in this action. (See Decl. of Kenny C. Brooks [ROA #44], ¶ 2, Exh. 1.)</p> <p>However, the Complaint only alleges that:</p> |
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|   |                                                                  | <p>Notwithstanding Plaintiff's repeated efforts to resolve his bodily injury claim in good faith, Defendant Progressive has wholly failed to offer any settlement or payment for Plaintiff's substantial medical expenses, lost wages, or pain and suffering, all of which fall squarely within the scope of the UM/UIM bodily injury coverage. Plaintiff has complied with all requirements of the policy, including submitting to the contractual arbitration process, yet Progressive has continued to act in bad faith by refusing to settle Plaintiff's bodily injury claim.</p> <p>(<i>Id.</i>, Exh. 1, ¶ 30.)</p> <p>It is not clear from this sentence whether Plaintiff is engaged currently in arbitration or whether Plaintiff is <i>willing</i> to engage in arbitration.</p> <p>Further, the Complaint is unverified and therefore, does not constitute evidence.</p> <p>At best, the Complaint estops Plaintiff from making assertions inconsistent with the Complaint. It is not sufficient, by itself, to establish that Plaintiff is engaged in arbitration with Defendant Progressive.</p> <p>Finally, Defendant Progressive fails to provide evidence as to what issues have been submitted to arbitration and the Complaint is silent on this issue.</p> <p>Therefore, there the court cannot determine whether the arbitration proceedings are "of a controversy" that "is an issue involved in an action or proceeding pending before [this] court." (Code Civ. Proc., § 1281.4.)</p> <p>Defendant Progressive has failed to establish that Plaintiff has been ordered to engage in arbitration or is engaged in arbitration of a controversy that is an issue before this court.</p> <p>Accordingly, the court will deny the motion.</p> <p>The court clerk shall give notice of this ruling.</p> |
| 4 | <p><b>Sunday vs. Kazweeny</b></p> <p><b>30-2025-01476760</b></p> | <p><u>Demurrer</u></p> <p>Defendants eXp Realty of Southern California, Inc.'s; Jason D. Crawford's; Anita Cruz's; and Michale Scott</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|   |                                                                                                           | <p>Medibles' Demurrer to Plaintiffs' First Amended Complaint is taken OFF CALENDAR pursuant to the Notice of Withdrawal of Hearing on Defendants' eXp Realty of Southern California, Inc., Jason D. Crawford, Anita Cruz, and Michael Scott Mendibles' Demurrer to Plaintiffs' First Amended Complaint (ROA #165) filed August 17, 2026.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 5 | <p><b>Amirmokri vs. American Family Connect Insurance Agency, Inc.</b></p> <p><b>30-2025-01491402</b></p> | <p><u>Motion to Substitute for Party</u></p> <p>Defendant Carfax, Inc. is granted leave to file sur-reply papers in response to Brad A. Mokri's reply papers.</p> <p>Any sur-reply shall be filed and served on or before September 4, 2026, and any sur-reply shall not exceed 10 pages.</p> <p>Plaintiff Behad Amirmokri's and Brad A. Mokri's Motion to Continue Action and to Substitute Successor in Interest shall be taken under submission on September 7, 2026.</p> <p><u>Pending Motion</u></p> <p>Plaintiff Behad Amirmokri and Brad A. Mokri move that this action continue notwithstanding the death of Plaintiff Behzad Amirmokri and that Brad A. Mokri be substituted as plaintiff in place of the decedent.</p> <p><u>Standard to Continue Action After Party's Death</u></p> <p>Civil Procedure Code section 377.20 provides that "[e]xcept as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person's death, but survives subject to the applicable limitations period." (Code Civ. Proc., § 377.20, subd. (a).)</p> <p>A cause of action that survives the death of a plaintiff passes to "the decedent's successor in interest." (Code Civ. Proc., § 377.30.)</p> <p>"Decedent's successor-in-interest" means "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.)</p> |

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|  |  | <p>The Civil Procedure Code states that a motion may be made to allow a cause of action to be continued after the plaintiff's death:</p> <p>On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.</p> <p>(Code Civ. Proc., § 377.31.)</p> <p>The Civil Procedure Code also requires that "[t]he person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest" must execute and file an affidavit or declaration that contains seven statements, including a statement that "[t]he affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding" and that "[n]o other person has a superior right . . . to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc., § 377.32, subd. (a).)</p> <p>The seven statements that must be included in the affidavit or declaration are:</p> <ol style="list-style-type: none"> <li>(1) The decedent's name.</li> <li>(2) The date and place of the decedent's death.</li> <li>(3) "No proceeding is now pending in California for administration of the decedent's estate."</li> <li>(4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.</li> <li>(5) Either of the following, as appropriate, with facts in support thereof: <ol style="list-style-type: none"> <li>(A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and</li> </ol> </li> </ol> |
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|  |  | <p>succeeds to the decedent's interest in the action or proceeding."</p> <p>(B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding."</p> <p>(6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding."</p> <p>(7) "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct."</p> <p>(Code Civ. Proc. § 377.32, subds. (a)(1)-(a)(7).)</p> <p>Brad A. Mokri submitted a declaration that included statements 1, 2, 3, 4, and 7. (See Decl. of Brad A. Mokri in Supp. of Mot. to Substitute Successor in Interest (Mokri Decl., ¶¶ 2-7.))</p> <p>However, Defendant Carfax, Inc. (Defendant Carfax) contends that while Mokri's declaration includes statement 5, it does not include "facts in support thereof." (Code Civ. Proc. § 377.32, subds. (a)(5).)</p> <p>In addition, Defendant Carfax points out that Mokri's declaration includes only part of statement 6 – that "[n]o other person has asserted a superior right to continue this litigation or to act as successor in interest with respect to the claims asserted in this case." (Mokri Decl., ¶ 7.)</p> <p>However, Mokri's declaration does not state that no other person has a superior right "to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc. § 377.32, subds. (a)(6).)</p> <p>However, Mokri submitted a supplemental declaration that addresses these points. (See Supp. Decl. of Brad A. Mokri in Supp. of Mot. to Substitute Successor in Interest (Mokri Supp. Decl.).)</p> <p>In this supplemental declaration, Mokri provides relevant facts that establish that he is Plaintiff's sole successor in interest within the meaning Civil</p> |
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|  |  | <p>Procedure Code sections 377.10, 3787.11, 377.30, and 377.22. (See <i>id.</i>, ¶¶ 4-7.)</p> <p>Mokri also states that “[n]o other person has a superior right to be substituted for Decedent in this pending action or proceeding.” (<i>Id.</i>, ¶ 8.)</p> <p>Mokri has thus addressed all the deficiencies in his original declaration and has now complied with all the requirements of Civil Procedure Code section 377.32(a).</p> <p>Defendant Carfax also argues that Mokri is Plaintiff’s counsel and that when Plaintiff passed away, Mokri did not have standing to bring this motion.</p> <p>However, in his reply papers, Mokri makes clear that he brings this motion in his individual capacity as Plaintiff’s Successor In Interest, and not as Plaintiff’s Counsel. (See Mokri Supp. Decl., ¶ 9 [“I am not seeking substitution by virtue of any authority I previously possessed as Decedent’s attorney. I seek substitution in my individual capacity as Decedent’s successor in interest based upon my succession to Decedent’s surviving causes of action.”]; Reply of Proposed Successor in Interest Brad A. Mokri in Supp. of Mot. to Substitute Brad A. Morki as Successor In Interest at p. 2:21-27 [“Mr. Mokri therefore submits this Reply in his individual capacity, in propria persona, as the proposed successor in interest to Decedent Behzad Amirmokri. To the extent the caption or signature block of the original Motion created ambiguity concerning the capacity in which substitution was sought, this Reply expressly clarifies that Mr. Mokri seeks substitution based upon his independent succession to Decedent’s surviving causes of action—not upon any continuing attorney-client authority following Decedent’s death.”].)</p> <p>Of course, courts do not consider evidence presented in a reply declaration except in extraordinary circumstances and where the other party has an opportunity to respond. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537 [“The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers.”]; <i>Plenger v. Alza Corp.</i> (1992) 11 Cal.App.4th 349, 362, fn. 8 [court may consider new evidence presented in reply only in exceptional cases and only if opposing party is given opportunity to respond to new evidence].)</p> |
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|   |                                                                 | <p>However, the court may consider new evidence on reply when submitted in rebuttal to points raised in the opposition papers. (<i>Karlsson v. Ford Motor Co.</i> (2006) 140 Cal.App.4th 1202, 1216.)</p> <p>Here, the supplemental declaration submitted by Mokri was in direct response to points raised by Defendant Carfax in its opposition papers and the court will consider them.</p> <p>However, the court will allow Defendant Carfax an opportunity to respond to the new evidence and shall decide the matter only after Defendant Carfax has had an opportunity to do so.</p> <p>Brad A. Mokri shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 6 | <p><b>Robinson vs. Ortiz</b></p> <p><b>30-2024-01438864</b></p> | <p><u>Motion to Seal</u></p> <p>Defendant Matias Salinas Ortiz's Motion to Seal is CONTINUED to November 17, 2026 at 9:00 a.m. in Department N15.</p> <p>Defendant Matias Salinas Ortiz is ORDERED to serve all motion papers upon all parties that have appeared in this case and upon any party that already has access to the Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike.</p> <p>Defendant Matias Salinas Ortiz is ORDERED to file a proof of service showing that he has complied with the above order within 30 days of this ruling.</p> <p>The court ORDERS that the following be STRICKEN from the record:</p> <ol style="list-style-type: none"> <li>1. Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike (Conditionally Filed Under Seal), page 6 of ROA #149; and</li> <li>2. Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike and all attached exhibits, pages 7-66 of ROA #149.</li> </ol> <p><u>Pending Motion</u></p> <p>Defendant Matias Salinas Ortiz moves to seal the Declaration of Matias Salinas Ortiz in Support of</p> |

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|  |  | <p>Opposition to Plaintiff's Motion to Strike (Ortiz Declaration).</p> <p><u>Standard for Motion to Seal</u></p> <p>"Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c); see <i>In re Marriage of Tamir</i> (2021) 72 Cal.App.5th 1068, 1078 [public's right of access to court records is based on both common law right of access to public documents, as well as constitutional right grounded in the First Amendment].)</p> <p>To seal a record, the moving party must file a motion for such relief, along with a memorandum and a declaration containing facts sufficient to justify the sealing. (Cal. Rules of Court, Rule 2.551, subd. (b)(1).) The motion must be served on all parties, and unless the court orders otherwise, a complete copy of the document must be served on all other parties that already possess copies, along with the redacted version. (Cal. Rules of Court, Rule 2.551, subd. (b)(2).)</p> <p>To grant a motion to seal, the court must expressly find that:</p> <ol style="list-style-type: none"> <li>1. an overriding interest exists that overcomes the right of public access to the record;</li> <li>2. the overriding interest supports sealing the records;</li> <li>3. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;</li> <li>4. the proposed sealing is narrowly tailored; and</li> <li>5. no less restrictive means exist to achieve the overriding interest.</li> </ol> <p>(Cal. Rules of Court, Rule 2.550, subd. (d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.)</p> <p>Examples of documents that may qualify to be sealed are:</p> <ul style="list-style-type: none"> <li>• Documents containing trade secrets, (see <i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 300; <i>McGuan v. Endovascular Tech., Inc.</i>, <i>supra</i>, 182 Cal.App.4th at p. 988 [business' quality control records and complaint handling procedures may be sealed]);</li> </ul> |
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|   |                                                                                       | <ul style="list-style-type: none"> <li>Documents containing material protected by a privilege, (see <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 108 [documents protected by attorney-client privilege may be sealed]);</li> <li>Confidential settlement agreement, (see <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283).</li> </ul> <p>A sealing order must: (a) specifically state facts supporting the above findings; and (b) be narrowly tailored (<i>i.e.</i>, it should direct sealing of only those documents and pages that contain material that needs to be placed under seal; all other portions of each document or page must remain in the public file). (See Cal. Rules of Court, rule 2.550(e)(1); Weil &amp; Brown, Cal. Prac. Guide Civ. Pro. Before Trial (Rutter 2017) ¶ 9:418.1.)</p> <p>Here, the requirements of Rule 2.551 have not been met.</p> <p>Defendant has not filed with the court a proof of service showing that he has served the motion papers on all parties that have appeared in this action and on all parties that have access to the records to be placed under seal.</p> <p>Therefore, the court will continue the hearing on this motion and order that Defendant serve the motion papers as required by Rule 2.551(b)(2).</p> <p>If Defendant fails to do so, the court may deny the motion.</p> <p>In addition, rather than filing the Ortiz Declaration conditionally under seal, Defendant attached the Ortiz Declaration to the motion papers. (See ROA #149.)</p> <p>Therefore, the court will strike the attached Ortiz Declaration from the motion papers.</p> <p>The court clerk shall give notice of this ruling.</p> |
| 7 | <p><b>So Cal Residential Homes, LLC vs. Tirado</b></p> <p><b>30-2025-01475479</b></p> | <p><u>Motion for Release of Payments and to Modify Payments</u></p> <p>Plaintiff So Cal Residential Homes, LLC's Application for the Release of Rental Deposits to Plaintiff and Increase in Monthly Rental Deposit Amount is DENIED.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

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|  |  | <p><u>Pending Motion</u></p> <p>Plaintiff So Cal Residential Homes, LLC moves for an order disbursing to it all amounts that Defendants Suzette Tirado and Enrique Reyes have paid into the court, requiring Defendants to make all future payments directly to Plaintiff, and increasing the amount that Defendants must going forward.</p> <p><u>Prior Proceedings</u></p> <p>On August 21, 2025, the court ordered that Defendants "deposit \$4,625 with the Court every 1st of the month beginning September 1, 2025." (ROA #77 at p. 1.)</p> <p><u>Ordering Payments to Be Made Into the Court in Unlawful Detainer Actions</u></p> <p>The parties to an unlawful detainer action are entitled to have the matter tried and decided in an expeditious manner.</p> <p>As the Appellate Division of the Superior Court has explained:</p> <p>Unlawful detainer trials are entitled to statutory preference over all other civil matters, and are required to be held within 20 days following the date that a request to set the matter for trial is made. Extensions may be granted upon the agreement of the parties, and no continuance of an unlawful detainer trial can exceed 10 days without the consent of the adverse party.</p> <p>(<i>Garcia v. Cruz</i> (2013) 221 Cal.App.4th Supp. 1, 5-6, citations omitted.)</p> <p>The only exception to this is set out in Civil Procedure Code section 1170.5, which states:</p> <p>If trial is not held within the time specified in this section, the court, upon finding that there is a reasonable probability that the plaintiff will prevail in the action, shall determine the amount of damages, if any, to be suffered by the plaintiff by reason of the extension, and shall issue an order requiring the defendant to pay that amount into court as the rent would have otherwise become due and payable or into an escrow designated by the court for so</p> |
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|  |  | <p>long as the defendant remains in possession pending the termination of the action.</p> <p>(Code Civ. Proc., § 1170.5, subd. (c).)</p> <p>This provision has been interpreted to mean that "[n]o other extensions are permitted unless the court, on its own motion or that of a party, holds a hearing to determine the reasonable probability that the plaintiff will prevail at trial and the amount of damages, if any, the plaintiff will suffer by virtue of the extension of the trial date." (<i>Garcia v. Cruz, supra</i>, 221 Cal.App.4th Supp. at p. 6.)</p> <p>The court makes its determination of the amount of damages based upon "the plaintiff's verified statement of the contract rent for rental payment, any verified objection thereto filed by the defendant, and the oral or demonstrative evidence presented at the hearing." (Code Civ. Proc., § 1170.5, subd. (c).)</p> <p>Thus, Section 1170.5 allows the trial court to take actions that might delay the plaintiff taking possession of the property "while assuring the availability of fair compensation to the plaintiff for any delay in acquiring possession." (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 393.)</p> <p>"The court's remedy, should the defendant fail to make the payment as ordered, is to hold the trial within 15 days of the date the payment was due." (<i>Garcia v. Cruz, supra</i>, 221 Cal.App.4th Supp. at p. 6, citing Code Civ. Proc., § 1170.5, subd.s (c), (d).)</p> <p><u>Disbursement of Payments Made and Making Payments to Plaintiff</u></p> <p>Plaintiff moves that the amounts already paid by Defendants be disbursed to Plaintiff and that all future payments be made directly to Plaintiff.</p> <p>However, Plaintiff provides no authority for these requests.</p> <p>Section 1170.5 itself only provides authority for the court to order that payments be made into the court or into an escrow account:</p> <p>[T]he court . . . shall issue an order requiring the defendant to pay that amount <i>into court</i> as the rent would have otherwise become due and payable <i>or into an escrow designated by the court</i> . . . .</p> |
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|  |  | <p>(Code Civ. Proc., § 1170.5, subd. (c), italics added.)</p> <p>Plaintiff points to no law that would allow the court to order that payments be made directly to Plaintiff, and the court is not aware of any.</p> <p>In addition, Section 1170.5 states that the payments shall continue to be made “for so long as the defendant remains in possession <i>pending the termination of the action.</i>” (<i>Ibid.</i>, italics added.)</p> <p>Further, Section 1170.5 only grants the court the authority to disburse the payments after resolution of the case: “After trial of the action, the court shall determine the distribution of the payment made into court or the escrow designated by the court.” (Code Civ. Proc., § 1170.5, subd. (f).)</p> <p>Again, Plaintiff points to nothing in Section 1170.5 or other law that would allow the court to order a distribution of the payments before the case is decided, and the court is not aware of any.</p> <p>In the Reply in Support of Plaintiffs’ Ex Parte Application for the Release of rental Deposits to Plaintiff and Increase in Monthly Rental Deposit Amount (Reply), Plaintiff argues for the first time that Section 1170.5 does not control here, because the court imposed the requirement of payments as a condition of an equitable stay under Civil Procedure Code section 526 and <i>Medford v. Superior Court</i> (1983) 140 Cal.App.3d 236.</p> <p>However, courts will not consider new issues raised for the first time in a reply without a showing of good cause and an opportunity to respond. (See <i>Reichardt v. Hoffman</i> (1997) 52 Cal.App.4th 754, 765-765 [court will not consider issues raised for first time in reply brief without showing of good cause and opportunity for opposing party to respond]; <i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010 [“points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before”].)</p> <p>Here, Plaintiff has not shown good cause nor have Defendants been given an opportunity to respond. The court would reject Plaintiff’s arguments on that basis.</p> |
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|  |  | <p>However, even if the court were to consider Plaintiff's contentions on the merits, the court would still deny the motion.</p> <p>In its prior ruling ordering Defendants to make monthly payments into the court, the court did not state that its orders were made pursuant to Section 526.</p> <p>Rather, the court indicated that ordering Defendants to make monthly payments was analogous to requiring a bond where the court granted preliminary injunctive relief in the form of a stay: "Staying an unlawful detainer matter pending resolution of a related matter is <i>in the nature</i> of an injunction and a bond may be required. (See Code Civ. Proc. § 526.)" (ROA #77 at p. 1, italics added.)</p> <p>This is supported by the fact that Plaintiff based its initial request that Defendants make payment on Section 1170.5 and not Section 526. (See ROA #67.)</p> <p>In any case, when the court grants preliminary injunctive relief, it is only authorized to order that a bond be posted; the court does not have the power to order that monthly payments be made into the court. (See Code Civ. Proc., § 529, subd. (a).)</p> <p>It is true that when it issued the prior order that Defendants make monthly payments, the court did cite to <i>Medford v. Superior Court</i>. (See ROA #77 at p. 1.)</p> <p>However, that case does not cite to Section 526 or 529.</p> <p><i>Medford v. Superior Court</i> only refers to Section 1170.5, the only statute of which this court is aware that authorizes the court to order defendants to make monthly payments. (See <i>Medford v. Superior Court</i>, <i>supra</i>, 140 Cal.App.3d at pp. 241-242.)</p> <p>Here, Plaintiff has failed to point to any law that grants the court the power to disburse payments to Plaintiff before resolution of the case or to order that payments be made directly to Plaintiff.</p> <p>Therefore, the court will deny this portion of the motion.</p> <p><u>Increasing Amount of Payments</u></p> |
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|  |  | <p>Plaintiff also requests that the court increase the amount of the payments to be made by Defendants. (fn.1)</p> <p>(fn.1) Plaintiff repeatedly claims that the court “invited” Plaintiff to seek modification of the amount of the payments made by Defendants. (See ROA #121 at p. 2:25-3:1, 4:4-7, 5:14-16, 6:2-4, 6:6-7.) The court did no such thing. Rather, in an order in the related action, the court merely stated that either Plaintiff or Defendants “may seek modification of those orders to address any change in circumstances (for example, if the amount of rent deposited needs to be increased).” (<i>Tirado v. Estate of Eddie E. Poupart, Jr., et al.</i>, Case Number 2024-01448646, ROA #144.) The court finds that this type of hyperbole, which Plaintiff has engaged in on several occasions in the related case and this case, to be neither helpful nor persuasive.</p> <p>In <i>Medford v. Superior Court</i>, the Court of appeal held that:</p> <p style="padding-left: 40px;">Section 1170.5 limits the amount that the court can require to be deposited to prospective damages the landlord may suffer as the result of granting a continuance of the trial date to a tenant in possession. In determining those damages the court must consider any evidence presented by the parties on the <i>issue of the rental value of the property</i>.</p> <p>(See <i>Medford v. Superior Court</i>, <i>supra</i>, 140 Cal.App.3d at pp. 241, italics added, superseded by statute on other grounds, <i>Levine v. Pollack</i> (1995) 37 Cal.App.4th 129, 137-138.)</p> <p>Here, Plaintiff has provided no evidence of the fair market rental value of the property at the current date.</p> <p>Instead, Plaintiff bemoans the fact that the expenses of owning the property (estimated to be \$8,732 per month) far exceed the amount of the payments being made by Defendants (\$4,625 per month). (See Decl. of Paul Wilcher in Supp. of Pltf.’s Ex Parte Application for the Release of Rental Deposits to Pltf. And Increase in Monthly Rental Deposit Amount, ¶ 3, Exh.s A-C.)</p> <p>Thus, Plaintiff only provides evidence of the carrying costs of the property. (See <i>ibid.</i>) However,</p> |
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|  |  | <p>considering this evidence, rather than the fair market rental value is not only inconsistent with <i>Medford v. Superior Court</i> but also Section 1170.5.</p> <p>That statute specifically states that “[t]he determination of the amount of the payment shall be based on the plaintiff’s verified statement of the contract rent for rental payment . . . .” (Code Civ. Proc., § 1170.5, subd. (c); see also Code Civ. Proc., § 1176 [“As used in this subdivision, ‘reasonable rental value’ means the contract rent unless the rental value has been modified by the trial court in which case that modified rental value shall be used.”].)</p> <p>Further, Section 1170.5 authorizes the court to order payments of “the amount of damages, if any, to be suffered by the plaintiff by reason of the extension.” (Code Civ. Proc., § 1170.5, subd. (c).)</p> <p>The amount of damages suffered by Plaintiff is not its carrying costs, which Plaintiff would have to pay even if no extension of the trial had been granted or if no stay had been issued.</p> <p>The damages suffered by Plaintiff arise from Defendants’ continued occupation of the property and the resulting inability by Plaintiff to lease the property to another tenant.</p> <p>In other words, Plaintiff’s damages are the fair market value rent that it could collect from another tenant. (See <i>Garcia v. Cruz, supra</i>, 221 Cal.App.4th Supp. at p. 6 [“The court’s determination of the amount of potential damages must be based on ‘plaintiff’s verified statement of the contract rent for rental payment, any verified objection thereto filed by the defendant, and the oral and demonstrative evidence presented at the hearing.’”], quoting Code Civ. Proc., § 1170.5, subd. (c).)</p> <p>Not surprisingly, when the court issued its prior order requiring Defendants to make monthly payments, it based that order on the finding that “the fair rental value of the property [is] \$4,625.” (ROA #77 at p. 1.)</p> <p>Here, without any evidence as to the fair market rental value of the property at the current time, Plaintiff fails to meet its burden to establish the damages it will face due to the extension of the trial date or granting of the stay.</p> <p>Therefore, the court will deny this portion of the motion.</p> |
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|          |                                                                     | Defendants shall give notice of this ruling.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>8</b> | <b>Ramirez vs. City of Santa Ana</b><br><br><b>30-2022-01287702</b> | <p><u>Motion to Disqualify and for Sanctions</u></p> <p>Defendant City of Santa Ana's Motion for Disqualification and Motion for Sanctions Against Plaintiff's Counsel for Use of Fake AI Cases and Further Misrepresentations of Law to this Court is GRANTED in part and DENIED in part.</p> <p>The court DENIES Defendant City of Santa Ana's request to disqualify Plaintiff Rita Ramirez's counsel of record.</p> <p>The court GRANTS in part Defendant City of Santa Ana's request for monetary sanctions against Plaintiff Rita Ramirez.</p> <p>Counsel for Plaintiff Rita Ramirez are ORDERED to pay Defendant City of Santa Ana sanctions in the amount of \$12,000 within 30 days of this ruling.</p> <p>Counsel for Plaintiff Rita Ramirez are ORDERED to serve a copy of this ruling on Plaintiff Rita Ramirez.</p> <p>The court clerk is ORDERED to serve a copy of this ruling on the State Bar of California.</p> <p><u>Pending Motion</u></p> <p>Defendant City of Santa Ana moves to disqualify counsel for Plaintiff Rita Ramirez and for monetary sanctions in the amount of \$25,000 against counsel for Plaintiff Rita Ramirez.</p> <p><u>Stay on Appeal</u></p> <p>On June 8, 2026, Plaintiff filed a notice of appeal of the order issued April 10, 2026, granting Defendant's motion for new trial and motion for judgment notwithstanding the verdict. (See ROA #963.)</p> <p>On August 17, 2026, Plaintiff filed a notice of appeal of the judgment entered on July 1, 2026. (See ROA #1022.)</p> <p>As an initial matter, Plaintiff contends that this court cannot hear this motion because the filing of the notice of appeal stays proceedings in this court.</p> |

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|  |  | <p>The Civil Procedure Code provides that:</p> <p>Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.</p> <p>(Code Civ. Proc., § 916, subd. (a).)</p> <p>Thus, the perfecting of an appeal results in an automatic stay of matters embraced or affected by the appeal, and it “divests the trial court of jurisdiction over the subject matter on appeal – i.e., jurisdiction in its fundamental sense.” (<i>Varian Medical Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 198.)</p> <p>“The purpose of the automatic stay ‘is to protect the appellate court’s jurisdiction by preserving the status quo until the appeal is decided.’” (<i>City of Santa Maria v. Adam</i> (2012) 211 Cal.App.4th 266, 311, quoting <i>Elsea v. Saberi</i> (1992) 4 Cal.App.4th 625, 629.)</p> <p>However, by its terms, Section 916 only stays “proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order.” (Code Civ. Proc., § 916, subd. (a).)</p> <p>The stay does not apply to “any other matter embraced in the action and not affected by the judgment or order” from which the appeal is taken. (<i>Ibid.</i>)</p> <p>“In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results.” (<i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 189.)</p> <p>“[A] proceeding affects the effectiveness of the appeal if the very purpose of the appeal is to avoid the need for that proceeding. In that situation, the proceeding itself is inherently inconsistent with a possible outcome on appeal and must therefore be stayed under section 916, subdivision (a).” (<i>Id.</i> at p. 190.)</p> |
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|  |  | <p>At the same time, an appeal does not stay proceedings on “ancillary or collateral matters which do not affect the judgment [or order] on appeal.” (<i>Betz v. Pankow</i> (1993) 16 Cal.App.4th 931, 938.)</p> <p>“A postjudgment proceeding that is ancillary or collateral to the appeal is not stayed ‘if the proceeding could or would have occurred regardless of the outcome of the appeal.’ If the postjudgment proceedings would not affect the effectiveness of the appeal, the proceedings are permitted.” (<i>City of Santa Maria v. Adam</i> (2012) 211 Cal.App.4th 266, 311, quoting <i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 191.)</p> <p>For example, “an appeal from the denial of a preliminary injunction does not stay further trial court proceedings on the merits. Because the injunction ‘amounts to a mere preliminary or interlocutory order to keep the subject of litigation in status quo pending the determination of the action on its merits’, the affirmance or reversal of its denial does not and cannot eliminate the need for additional proceedings on the merits.” (<i>Id.</i> at p. 191, quoting <i>Gray v. Bybee</i> (1943) 60 Cal.App.2d 564, 571.)</p> <p>As the Court of Appeal has explained:</p> <p style="padding-left: 40px;">The fact that the postjudgment or postorder proceeding may render the appeal moot is not, by itself, enough to establish that the proceeding affects the effectiveness of the appeal and should be stayed under section 916. Rather, something more is needed. For example, the trial court proceeding must directly or indirectly seek to “enforce, vacate or modify [the] appealed judgment or order.” Or the proceeding must substantially interfere with the appellate court's ability to conduct the appeal.</p> <p>(<i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 189, footnote omitted, quoting <i>Elsa v. Saberi</i> (1992) 4 Cal.App.4th 625, 629.)</p> <p>Here, this motion for disqualification and monetary sanctions is ancillary and collateral to the appeal of the court’s orders on the motion for new trial and motion for judgment notwithstanding the verdict.</p> <p>The purpose of the appeal is not to avoid this motion nor is this motion inconsistent with a possible outcome of the appeal.</p> |
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|  |  | <p>Because this motion is based on Plaintiff's alleged citation to nonexistent cases and other alleged misrepresentations made by Plaintiff in briefing, this motion will need to be heard and decided regardless of the decision in the appeal.</p> <p>In <i>Varian Medical Systems, Inc. v. Delfino</i>, the Court of Appeal noted that "an appeal from an order denying a motion to disqualify counsel does not automatically stay further trial court proceedings on the merits because such proceedings would occur regardless of whether the reviewing court affirms or reverses the order." (<i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 191.)</p> <p>Here, the converse is true. An appeal on the merits does not automatically stay further proceedings on a motion to disqualify, because both issues (the merits and the motion to disqualify) are ancillary and collateral to each other.</p> <p><u>Standard to Disqualify Counsel</u></p> <p>Courts have the authority to disqualify counsel based on "the power inherent in every court '[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.'" (<i>In re Charlissee C.</i> (2008) 45 Cal.4th 145, 159-161, quoting Code Civ. Proc., §128, subd. (a)(5)); see <i>In re Complex Asbestos Litig.</i> (1991) 232 Cal.App.3d 572, 585 [same].)</p> <p>A court may exercise this power when it is shown that "disqualification is required under professional standards governing avoidance of conflicts of interest or potential adverse use of confidential information." (<i>Havasu Lakeshore Investments, LLC v. Fleming</i> (2013) 217 Cal.App.4th 770, 777, quoting <i>Oaks Management Corp. v. Superior Court</i> (2006) 145 Cal.App.4th 453, 462.)</p> <p>At the same time, "[s]peculative contentions of conflict of interest cannot justify disqualification of counsel." (<i>Castro v. Los Angeles County Bd. of Supervisors</i> (1991) 232 Cal.App.3d 1432, 1442.) Further, "an appearance of impropriety by itself does not support a lawyer's disqualification." (<i>DCH Health Services Corp. v. Waite</i> (2002) 95 Cal.App.4th 829, 833.)</p> |
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|  |  | <p>As the Court of Appeal has explained:</p> <p>Motions to disqualify counsel present competing policy considerations. On the one hand, a court must not hesitate to disqualify an attorney when it is satisfactorily established that he or she wrongfully acquired an unfair advantage that undermines the integrity of the judicial process and will have a continuing effect on the proceedings before the court. On the other hand, it must be kept in mind that disqualification usually imposes a substantial hardship on the disqualified attorney's innocent client, who must bear the monetary and other costs of finding a replacement. A client deprived of the attorney of his choice suffers a particularly heavy penalty where . . . his attorney is highly skilled in the relevant area of the law.</p> <p>(<i>Gregori v. Bank of America</i> (1989) 207 Cal.App.3d 291, 300.)</p> <p>However, the Supreme Court has made it clear that "[t]he paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar." (<i>People ex rel. Dep't of Corps. v. Speedee Oil Change Systems, Inc.</i> (1999) 20 Cal.4th 1135, 1145.) When there has been a violation of the ethical rules, "[t]he important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process." (<i>Ibid.</i>)</p> <p>In that situation, "disqualification of counsel is a prophylactic remedy designed to mitigate the unfair advantage a party might otherwise obtain if the lawyer were allowed to continue representing the client." (<i>City of San Diego v. Superior Court</i> (2018) 30 Cal.App.5th 457, 470-471.)</p> <p>At the same time, disqualification on the basis of a finding of an ethical breach is only warranted upon a finding of an "ethical violation [that is] likely to have a substantial continuing effect on future proceedings." (<i>Doe v. Yim</i> (2020) 55 Cal.App.5th 573, 581.)</p> <p>"Disqualification is inappropriate . . . simply to punish a dereliction that will likely have no substantial continuing effect on future judicial proceedings." (<i>Gregori v. Bank of America, supra</i>, 207 Cal.App.3d at p. 309; <i>California Self-Insurers' Sec. Fund v. Superior Court</i> (2018) 19 Cal.App.5th 1065, 1077)</p> |
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|  |  | <p>["Disqualification is neither intended to be punitive nor formalistic."].)</p> <p>Factors to consider in evaluating a motion to disqualify include: 1) a party's right to counsel of their choice, 2) an attorney's interest in representing the client, 3) the financial burden on the client to replace a disqualified attorney, 4) the possibility the motion for disqualification is being brought for improper tactical reasons, and 5) the principle that the fair resolution of disputes requires vigorous representation of parties by independent counsel. (See <i>People ex rel. Dep't of Corps. v. Speedee Oil Change Systems, Inc.</i>, <i>supra</i>, 20 Cal.4th at pp. 1144-1145; <i>Mills Land &amp; Water Co. v. Golden West Refining Co.</i> (1986) 186 Cal.App.3d 116, 126.)</p> <p><u>Ethical Rules and Laws</u></p> <p>An attorney has a duty "never to seek to mislead the judge or any judicial officer by an artifice or false statement of fact or law." (Bus. &amp; Prof. Code, § 6068, subd. (d).)</p> <p>In addition, the Rules of Professional Conduct state that a lawyer shall not "knowingly make a false statement of fact or law to a tribunal or fail to correct a false statement of material fact or law previously made to the tribunal by the lawyer" and shall not "knowingly misquote to a tribunal the language of a book, statute, decision or other authority." (Cal. Rules of Prof. Code Rule 3.3, subd.s (a)(1), (a)(2).)</p> <p>Further, the California Rules of Court prohibit citation to an opinion that is not "certified for publication or ordered published." (Cal. Rules of Court, rule 8.1115(a).)</p> <p>Thus, an attorney is barred from citing to a nonexistent case. (See <i>People v. Alvarez</i> (2025) 114 Cal.App.5th 1115, 1119 ["He also violated rule 8.1115(a) of the California Rules of Court, which prohibits citation to unpublished opinions, because he cited a non-existent case."].)</p> <p>In one case, the Court of Appeal noted that:</p> <p style="padding-left: 40px;">[N]early all of the quotations in plaintiff's opening brief, and many of the quotations in plaintiff's reply brief, have been fabricated. That is, as noted above, although most of the cases to which the quotes are attributed exist, the quotes do not. Further, many of the cases</p> |
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|  |  | <p>plaintiff cites do not support the propositions for which they are cited or discuss other matters entirely, and a few of the cases do not exist at all.</p> <p>(<i>Noland v. Land of the Free, L.P.</i> (2025) 114 Cal.App.5th 426, 435.)</p> <p>The “fabricated legal authorities were created by generative artificial intelligence (AI) tools that plaintiff’s counsel used to draft his appellate briefs. The AI tools created fake legal authority — sometimes referred to as AI ‘hallucinations’ — that were undetected by plaintiff’s counsel because he did not read the cases the AI tools cited.” (<i>Id.</i> at p. 430.)</p> <p>Plaintiff’s counsel admitted to the use of generative AI, stated he was not aware of the “AI hallucinations,” and acknowledged his use of generative AI to prepare the briefs was “inexcusable,” but claimed that he had not intended to deceive the court. (<i>Id.</i> at pp. 443-445.)</p> <p>Nonetheless, the Court of Appeal held that “no brief, pleading, motion, or any other paper filed in any court should contain any citations — whether provided by generative AI or any other source — that the attorney responsible for submitting the pleading has not personally read and verified.” (<i>Id.</i> at p. 431.)</p> <p><u>Citations to Non-Existent Cases and Misrepresentations of Law</u></p> <p>Here, Defendant points to the fact that Plaintiff’s Counsel cited to three nonexistent cases in the November 17, 2025 opposition to Defendant’s motion for nonsuit. (See ROA #726.)</p> <p>The opposition contained the following footnote:</p> <p style="padding-left: 40px;">Complaints of FEHA violations are indisputably disclosures of statutory/rule/regulation violations for purposes of <i>Labor Code</i> Section 1102.5 liability purposes. <i>Favia v. Liberty Mutual Insurance Co.</i>, (2023) 89 Cal.App.5th 476; <i>Taswell v. Regents of UC</i>, (2018) 23 Cal.App.5th 343; <i>People v. McVeigh</i>, (2020) 47 Cal.App.5th 698; <i>Mize-Kurima v. Marshalls of CA, LLC</i>, (2015) 218 Cal.App.4th 1367.</p> <p>(<i>Id.</i> at p. 13, fn.8.)</p> |
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|  |  | <p>While the proposition stated is true, <i>Favia v. Liberty Mutual</i>, <i>People v. McVeigh</i>, and <i>Mize-Kurima v. Marshalls of CA, LLC</i> do not exist. Further, <i>Taswell v. Regents of UC</i> is not a Fair Employment and Housing Act (FEHA) case and does not stand for the proposition stated.</p> <p>Plaintiff's Counsel does not dispute these errors, has accepted responsibility, apologized to the court, and made corrections to the brief. (See Decl. of Lawrence J. Lennemann in Supp. of Pltf.'s Opp'n to Def.'s Mot. for Disqualification and Sanctions, ¶ 7.)</p> <p>Defendant also points to a portion of the memorandum of points and authorities from Plaintiff's December 23, 2025, motion for attorney's fees, in which Plaintiff's Counsel argued:</p> <p style="padding-left: 40px;">In determining a reasonable rate for the attorneys' services, courts are to consider: (1) the prevailing rate charged by attorneys of similar skill and experience for comparable legal services in the community; (2) the nature of the work performed; and (3) the attorney's customary billing rates. <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 643.</p> <p>(ROA #832 at p. 13:12-16.)</p> <p>Defendant contends that the statement that courts should consider "the attorney's customary billing rates" is not supported by <i>Serrano v. Unruh</i>.</p> <p>In fact, the Supreme Court in <i>Serrano v. Unruh</i> was focused on attorney's fees awards for the work of public-interest lawyers and therefore rejected the idea that the award should be calculated based on the public-interest lawyers' "customary billing rates" or their salaries. (See <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 643 ["We therefore hold that the trial court did not abuse its discretion in denying discovery of the salaries paid and the overhead costs of the organizations employing plaintiffs' attorneys. Services compensable under section 1021.5 are computed from their reasonable market value. The trial court was entitled to use the prevailing billing rates of comparable private attorneys as the 'touchstone' for determination of that value."].)</p> <p>It is true that there is support for the proposition that the court may consider an attorney's customary billing. (See <i>White v. City of Richmond</i> (9th Cir. 1983)</p> |
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|  |  | <p>713 F.2d 458, 461 [“While evidence of counsel's customary hourly rate may be considered by the District Court, it is not an abuse of discretion in this type of case to use the reasonable community standard that was employed here.”], disapproved of on other grounds, <i>Pennsylvania v. Delaware Valley Citizens' Council for Clean Air</i> (1987) 483 U.S. 711.)</p> <p>However, Plaintiff’s Counsel’s citation to <i>Serrano v. Unruh</i> for that proposition is still misleading.</p> <p>Defendant also contends that Plaintiff’s counsel misrepresented case law in her March 13, 2026 oppositions to Defendants’ motion for new trial and Defendant’s motion for judgment notwithstanding the verdict.</p> <p>Defendant points to the following citation in the opposition to the motion for new trial:</p> <p style="padding-left: 40px;"><i>Karlsson v. Ford Motor Co.</i> (2006) 140 Cal.App.4th 1202, 1227-1228 – unsuccessful motion in limine seeking to preclude evidence of manufacturer’s alleged discovery abuses concerning destruction of documents did not preserve for appeal alleged error in plaintiff’s closing argument concerning that evidence.</p> <p>(ROA #900 at p. 9:14-17.)</p> <p>Defendant argues that <i>Karlsson v. Ford Motor Co.</i> is distinguishable from this case and is more similar to a <i>People v. Wharton</i> (1991) 53 Cal.3d 522, a case cited in <i>Karlsson v. Ford Motor Co.</i></p> <p>Defendant also contends that Plaintiff’s failure to cite to <i>People v. Wharton</i> , which is more analogous to this case, is also misleading to the court.</p> <p>However, <i>Karlsson v. Ford Motor Co.</i> does stand for the proposition for which it as cited. Thus, Plaintiff’s citation to the case falls within the bounds of permissible, if not particularly persuasive, argument in light of the differences in the underlying facts.</p> <p>Defendant also refers to the following statement made in a footnote in the opposition to the motion for judgment notwithstanding the verdict:</p> <p style="padding-left: 40px;">California law states that one can have objectively reasonable cause to believe the reported conduct is unlawful without having actually considered whether the conduct was</p> |
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|  |  | <p>unlawful. <i>Vatalaro v. County of Sacramento</i> (2022) 79 Cal.App.5th 367, 380-383.</p> <p>(ROA #912 at p. 6, fn.9.)</p> <p>This citation does not support the proposition set forth by Plaintiff. The pages of <i>Vatalaro v. County of Sacramento</i> cited by Plaintiff's Counsel only discuss whether "reasonable cause to believe" is the same as "reasonably believes." (See <i>Vatalaro v. County of Sacramento</i> (2022) 79 Cal.App.5th 367, 380-383.)</p> <p>The citation thus is misleading.</p> <p>Nonetheless, Plaintiff's Counsel's conduct is not sufficient to warrant disqualification.</p> <p>While Plaintiff's Counsel's non-existent and misleading citations are a serious matter and a violation of the Rules of Court, they are not violations of the ethical rules or statutes, which require that counsel's actions be made "knowingly."</p> <p>Here, there is insufficient evidence that Plaintiff's Counsel acted with knowledge that his citations were non-existent or misleading.</p> <p>This is supported by the fact that two of the four propositions were true. The problem was that the citations were non-existent or did not support the propositions. In addition, one of the propositions was supported by the citation, albeit not in a particularly persuasive manner.</p> <p>Further, the court is aware that Plaintiff's Counsel was required to prepare a large volume of briefing in a relatively short period time, which explains (although does not excuse) their use of artificial intelligence.</p> <p>In addition, Plaintiff's Counsel's breaches are unlikely to have a substantial continuing effect on future proceedings. In fact, as pointed out by Plaintiff's Counsel, the non-existent citations and misleading citations did not have a great effect on the proceedings for which the citations were made.</p> <p>Finally, the court must consider Plaintiff's right to counsel of her choice, the financial burden on the client to replace a disqualified attorney, and the principle that the fair resolution of disputes requires vigorous representation of parties by independent counsel. (fn.1)</p> |
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|  |  | <p>(fn.1) The court was provided little or no evidence regarding the other factors it should consider: an attorney's interest in representing the client and the possibility the motion for disqualification is being brought for improper tactical reasons.</p> <p>Here, much of the burden of disqualification will not fall upon Plaintiff's Counsel, but upon Plaintiff, who is blameless here, given the nature of the transgressions.</p> <p>Thus, the court will deny the motion for disqualification.</p> <p><u>Monetary Sanctions</u></p> <p>However, merely because the court has determined that disqualification is no appropriate does not lead to the conclusion that other sanctions should not be applied.</p> <p>California Rules of Court rule 2.30(b) provides that "[i]n addition to any other sanctions permitted by law, the court may order a person, after written notice and an opportunity to be heard, to pay reasonable monetary sanctions to the court or an aggrieved person, or both, for failure without good cause to comply with the applicable rules." (Cal. Rules of Court, rule 2.30(b).)</p> <p>In addition, in <i>Noland v. Land of the Free, L.P.</i> "Attorney Mostafavi's fabricated citations and erroneous statements of law have required this court to spend excessive time on this otherwise straightforward appeal to attempt to track down fabricated legal authority and then to research the issues presented." (<i>Noland v. Land of the Free, L.P.</i> (2025) 114 Cal.App.5th at pp. 447-448.)</p> <p>On this basis, the Court of Appeal "conclude[d] that an award of sanctions payable to the court is appropriate." (<i>Id.</i> at p. 448.)</p> <p>The <i>Noland v. Land of the Free, L.P.</i> Court then imposed sanctions of \$10,000 against counsel for relying on fabricated legal authority, pursuing a frivolous appeal, and "for conduct that unnecessarily burdens the court and the taxpayers" and in order to "compensate the government for its expense in processing, reviewing and deciding a frivolous appeal." (<i>Id.</i> at pp. 442, 447.)</p> |
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|  |  | <p>Plaintiff’s counsel was also ordered to serve a copy of the opinion on his client and the clerk was directed to serve a copy of the opinion to the State Bar. (<i>Id.</i> at p. 448.)</p> <p>Here, as in <i>Noland v. Land of the Free, L.P.</i>, Plaintiff’s Counsel violated the California Rules of Court by citing to non-existent case law.</p> <p>In addition, Plaintiff’s Counsel also made citations that were misleading. (See <i>Perry v. Kia Motors America, Inc.</i> (2023) 91 Cal.App.5th 1088, 1095–1096 [“An attorney is an officer of the court and owes the court a duty of candor’ ‘It is the duty of an attorney . . . [¶] . . . [¶] . . . [t]o employ, for the purpose of maintaining the causes confided to him or her those means only as are consistent with truth, and never to seek to mislead the judge or any judicial officer by an artifice or false statement of fact or law.”], quoting <i>Levine v. Berschneider</i> (2020) 56 Cal.App.5th 916, 921 &amp; Bus. &amp; Prof. Code, § 6068, subd. (d); see also <i>Paine v. State Bar</i> (1939) 14 Cal.2d 150, 154 [“Honesty in dealing with the courts is of paramount importance, and misleading a judge is, regardless of motives, a serious offense.”]; <i>Furlong v. White</i> (1921) 51 Cal.App. 265, 271 [“Counsel should not forget that they are officers of the court, and while it is their duty to protect and defend the interests of their clients, the obligation is equally imperative to aid the court in avoiding error and in determining the cause in accordance with justice and the established rules of practice.”].)</p> <p>Here, Plaintiff’s Counsel’s non-existent and misleading citations have caused the court and Defendant to expend valuable time and resources.</p> <p>Thus, the court will grant the motion for monetary sanctions payable to Defendant.</p> <p>However, the court will not order sanctions of the entire amount requested by Defendant because not all of Plaintiff’s Counsel conduct was improper, several of the non-existent and misleading citations related to issues that were not central to proceedings before the court, and the full measure of sanctions is not necessary to deter future misconduct by Plaintiff’s Counsel.</p> <p>Finally, the improper citations were the work of Plaintiff’s Counsel and not Plaintiff. Therefore it is appropriate to impose sanctions on Plaintiff’s Counsel. (Cf. <i>Ghanooni v. Super Shuttle</i> (1993) 20 Cal.App.4th</p> |
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|   |                                                                                                               | <p>256, 261, ["[M]onetary sanctions against the party's attorney require a finding [that] the 'attorney advis[ed] that conduct.'"], quoting Code Civ. Proc., § 2023, subd. (b)(1).)</p> <p>Defendant shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 9 | <p><b>Creditors Adjustment Bureau, Inc. vs. Industrial Succession, LLC</b></p> <p><b>30-2025-01534147</b></p> | <p><u>Motions to Be Relieved as Counsel</u></p> <p>Counsel James R. Ling's Motion to Be Relieved as Counsel for Defendant Industrial Succession, LLC is taken OFF CALENDAR as moot.</p> <p>Counsel James R. Ling's Motion to Be Relieved as Counsel for Defendant Pen Manufacturing, LLC is taken OFF CALENDAR as moot.</p> <p><u>Pending Motion</u></p> <p>Counsel James R. Ling (Counsel) moves to be relieved as counsel for Defendants Industrial Succession, LLC and Pen Manufacturing, LLC.</p> <p><u>Substitution of Counsel</u></p> <p>On June 3, 2026, Substitutions of Counsel were filed indicating that Counsel Brett H. Ramsaur was substituting for Counsel James R. Ling, as counsel of record for Defendants Industrial Succession, LLC and Pen Manufacturing, LLC. (See ROA #56, #57.)</p> <p>As a result, Counsel James R. Ling is no longer counsel of record for Defendants Industrial Succession, LLC and Pen Manufacturing, LLC in this litigation.</p> <p>Accordingly, motions to be relieved as counsel are moot and shall be taken off calendar.</p> <p>The court clerk shall give notice of this ruling.</p> |